NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

C.A.(CAA)-79/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION :

AMONGST

HOWZAT GAMES PRIVATE LIMITED

... Applicant No.1 /Transferor Company

AND

PEPEERPOTTS DEVELOPERS PRIVATE LIMITED

... Applicant No.2 /Transferor Company

AND

JEU ELECTRONIQUE SOFTWARE PRIVATE LIMITED

... Applicant No.3 /Transferor Company

WITH

JUNGLEE GAMES INDIA PRIVATE LIMITED

... Applicant No.4 /Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on 08 .12.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. BHASKARA PANTULA MOHAN, HON'BLE MEMBER (JUDICIAL)
SH. HEMANT KUMAR SARANGI, HON'BLE MEMBER (TECHNICAL)

PRESENT

For the Applicant : Mr. Rajeev Kumar, Adv.

ORDER

PER: SHRI BHASKARA PANTULA MOHAN, MEMBER (J)

Under consideration is the Application No. C.A.(CAA)79/ND/2021 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with the meeting of Shareholders and Creditors in relation to the Transferor Companies, dispensing with the meeting of Shareholders of the Transferee Company and convening the meeting Unsecured Creditors and dispensing the meeting of Secured Creditors of the Transferee Company for approval of the **'Scheme of Amalgamation'**, which shall take effect from the Appointed Date of 01.01.2021.

2. That Howzat Games Private Limited (hereinafter referred as the **"Applicant No. 1/ Transferor Company")** having CIN U74999DL2018PTC331622 is a private limited company incorporated under the Erstwhile Companies Act, 1956 on 27.03.2018. The registered

office of the Transferor Company No.1 is situated at 55, 2nd Floor, Lane-2, Westend Marg, Saidullajab, Near Saket Metro, New Delhi-110030. The Authorised Share Capital of the Company is Rs. 1,00,000/- and Paid-up share Capital of the company is Rs. 1,00,000/-.

3. That Pepperpotts Developers Private Limited (hereinafter referred as the **"Applicant No. 2/ Transferor Company"**) having CIN U74999DL2019PTC345457 is a company incorporated under the Erstwhile Companies Act, 1956 on 05.02.2019. The registered office of the Transferor Company No. 2 is situated at 55, 2nd Floor, Lane-2, Westend Marg, Saidullajab, Near Saket Metro, New Delhi-110030. The Authorised Share Capital of the Company is Rs. 1,00,000/- and Paid-up share Capital of the company is 1,00,000/-.

4. That Jeu Electronique Software Private Limited (hereinafter referred as the **"Applicant No. 3/ Transferor Company"**) having CIN U74999DL2019PTC345661 is a company incorporated under the Erstwhile Companies Act, 1956 on 08.02.2019. The registered office of the Transferor Company No. 3 is situated at 55, 2nd Floor, Lane-2, Westend Marg, Saidullajab, Near Saket Metro, New Delhi-110030. The Authorised Share Capital of the Company is Rs. 1,00,000/- and Paid-up share Capital of the company is Rs. 1,00,000/-.

5. That Junglee Games India Private Limited (hereinafter referred as the **"Applicant No. 4/ Transferee Company")** having CIN U72200DL2011PTC219472 is a private limited company incorporated under the Erstwhile Companies Act, 1956 on 19.05.2011. The registered office of the Transferee Company No.4 is situated at 55, 2nd Floor, Lane-2, Westend Marg, Saidullajab, Near Saket Metro, New Delhi-110030. The Authorised Share Capital of the Company is Rs. 1,00,00,000/- and Paid-up share Capital of the company is Rs. 50,00,000/-.

6. That the present Application has been jointly filed by all the Transferor and Transferee Companies. The 'Transferor' and 'Transferee' Company together are called 'Applicant Companies' hereinafter. That the Registered offices of all the Companies are in Delhi and therefore, the jurisdiction lies with this Bench.

7. It is seen from the record that the Board of Directors of the Applicant Companies vide separate meetings held on 31.05.2021 have approved the proposed 'Scheme of Amalgamation'.

8. It is stated by the Applicant Companies that the aforesaid Scheme of Amalgamation will result in the following advantages :

> *"1. To undertake the designing and development or purchase of systems and applications software relating to games and other areas either for its own use or for sale in India or for export outside India and to design and develop such systems and application software for or on behalf of manufactures, owners and users of*

computer systems and digital/ electronic equipment in India or elsewhere in the world.

2. *To create, manage and service online mass media platforms to host competitive skill games such as carom, chess, crossword, scrabble and other such social games.*

3. *To provide a platform for customers to register as a member of the online mass media platforms, subscribe to tournaments and other competitive activities, collect fees for such subscriptions, participate in such tournaments, distribute prizes in cash and kind, and evaluate position, rating and raking of members.*

4. *To act as consultants, advisors, developers and traders in computer games programming, systems development, system design, system architecture, software, designing, computer aided designs etc."*

9. That the Applicant Companies have stated that none of the Applicant Companies are not under any prosecution/ investigation/ inquiry under Companies Act, 2013.

10. That all the Applicant Companies have also placed on record the Certificate from the Statutory Auditors conforming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act, 2013.

11. That both the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). All the Applicant Companies have filed their latest Balance Sheets as on 31.03.2020.

12. That the position regarding both the Applicant Companies wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised below:

Company	No. of Share holders	Percentage of Shareholders given Consent	No. of Secured Creditors	Percentage of Secured Creditors given Consent (in value)	No. of Unsecured Creditors	Percentage of Secured Creditors given Consent (in value)
Howzat Games Private Limited Applicant No.1 Company/ Transferor Company	2	100%	Nil	N.A.	20	99.71% (in value)
Pepperpotts Developers Private Limited Applicant No.2/ Transferor Company	2	100%	Nil	N.A.	7	99.82% (in value)
Jeu Electronique Software Private Limited Applicant No.3/ Transferor Company	2	100%	Nil	N.A.	5	99.85% (in value)
Junglee Games India Private Limited Applicant No.4/ Transferee Company	2	100%	Nil	N.A.	52	Nil

13. That all the shareholders of the Applicant Companies have given 'no objection' to the Scheme on respective affidavit. Therefore, the requirement of convening the Meetings of Shareholders in respect of the Applicant Companies is dispensed with.

14. That the consent of Unsecured creditors of the Transferee Company has not been obtained. Therefore, the separate meeting of the Unsecured Creditors of the Transferor Companies shall be convened in the following manner:

i) Meeting of the Unsecured Creditor of the Transferee Company be conducted through Video Conferencing.

ii) That the details of the quorum, time and date of the meeting of Unsecured Creditors of the Transferee Company are as follows :

Meeting of Transferee Company	Time	Date of Meeting	Total no. Creditors	Quorum of the meeting
Un-Secured Creditors	4:00PM	17.01.2022	52	20

iii) If the quorum is not complete at the time of the meeting, the Chairman shall adjourn the meeting by 30 minutes, and the creditors present after 30 minutes shall be deemed to constitute the quorum for the said meetings.

iv) Mr. S.P Singh Chawla, Advocate having mobile no. 9911338808 is appointed as Chairman of the meeting against the remuneration of Rs. 1,00,000/ - (One lakh).

v) That Mr. Arvind Kohli, Company Secretary having mobile no. 9811026619 is appointed as scrutinizer against fee of Rs. 1,00,000 (One lakh) only.

vi) The notice of the above said meetings shall be sent by the Transferee Company through registered post or courier or by email, 30 days in advance before the scheduled date of the meeting, indicating the day, date, the place and the time as aforesaid, together with the proposed scheme of arrangement, copy of explanatory statement as required to be sent under the companies Act, 2013, the prescribed from of proxy and any other document as may be prescribed under the Act or rules. The guidelines for conducting meeting by video conferencing shall be clearly mentioned in the notice.

vii) The Transferee Company shall publish advertisement in the newspapers namely, "Business Standard" (English, Delhi edition) and "Business Standard" (Hindi, Delhi edition) not less than 30 days before the aforesaid meetings.

viii) The Voting shall be allowed on the proposed Scheme by voting in person. The Chairman shall be responsible to report the result of the meeting within a period of 7 days of the date of the meeting with details of voting on the proposed Scheme.

15. That in accordance with Section 230(5) of the Companies Act, 2013, the Transferor Company shall serve the notices of these meetings to the following Authorities, namely:

a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs,

b) Registrar of Companies (NCT of Delhi & Haryana), Ministry of Corporate Affairs,

c) Official Liquidator, attached to the Delhi High Court;

d) Jurisdiction Income Tax Authorities,

e) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the scheme;

at least 30 days before the date fixed for respective meetings of equity shareholders, secured creditors and unsecured creditors.

16. The authorities are directed to raise objection/ representations, if any, within 30 days from the date of receipt of the Notice. In the event that 'no objection' or representation is made within the stipulated timeframe, it shall be presumed that they do not have any objection.

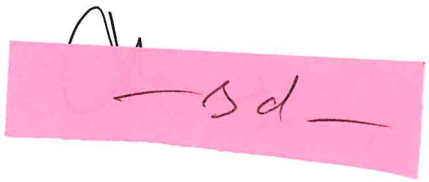
17. The Chairman's Report shall be filed before this Tribunal within 7 days from the conclusion of this meeting.

18. Since there are no Secured Creditors in any of the Applicant Companies. Therefore, the requirement of convening their meeting does not arise.

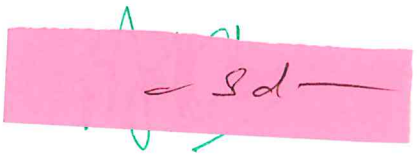
19. That more than 90% in value' of unsecured creditor of all Transferor Companies have given 'no objection' to the Scheme on

respective affidavits. Therefore, the requirement of convening the Meetings of Unsecured Creditors in respect of all the Transferor Companies is dispensed with.

20. **The Application is allowed in the aforesaid terms.**



(HEMANT KUMAR SARANGI)
MEMBER (T)



(BHASKARA PANTULA MOHAN)
MEMBER (J)